

Here, Plaintiff's causes of action for wrongful termination, disability discrimination, failure to engage in interactive process etc. are all factually predicated on his disability, a hernia. Defendant is attempting to subpoena medical records from the medical provider that diagnosed the hernia and referred Plaintiff to a surgeon that Plaintiff has been unable to identify. Plaintiff has right of privacy in his medical records. See *Grafilo v. Wolsohn* (2019) 33 Cal.App.5<sup>th</sup> 1024, 1034. However, by filing the present suit he has waived any right in this records that are directly relevant to the plaintiff's claim and essential to the fair resolution of the lawsuit. *Davis, supra* 7 Cal.App.4<sup>th</sup> at 1014. The Court has reviewed the scope of the subpoena and finds that it seeks records directly relevant to Plaintiff's claims. The Court also finds that there is not a less intrusive means to obtain this information. The request to quash or modify the subpoena is denied.

Sanctions: Plaintiff has requested sanctions against Defendant based on alleged misuse of the discovery process. CCP § 2023.030(a). The Court is denying the request to quash and therefore no misuse has occurred. Defendant has also requested sanctions, alleging the present motion was brought in bad faith. While Defendant has ultimately prevailed in opposing the motion, the Court does not find that it was brought in bad faith. Sanctions will not be awarded.

The motion is **DENIED**. The requests for sanctions is **DENIED**. A proposed order was lodged with the Court and will be modified to conform to the Court's final ruling.

#### **IN RE: BELL**

**Case Number: 24CV-0206587**

**Tentative Ruling on Petition for Change of Name:** Petitioner Jacqueline Nicole Bell seeks to change her name to Jacqueline Nicole Wagner. All procedural requirements of CCP §§ 1275 et. seq. have been satisfied. The Petition is **GRANTED**. All future dates will be vacated and the file closed upon the processing of the Decree Changing Name.

#### **BURBANK VS. STATE OF CALIFORNIA, ET AL.**

**Case Number: 24CV-0204945**

**Tentative Ruling on Order to Show Cause Re: Sanctions:** An Order to Show Cause Re: Sanctions issued on January 29, 2025 to Plaintiff Tina Burbank for her failure to timely serve the Complaint and Summons on defendants pursuant to CRC 3.110(b). "The complaint must be served on all named defendants and proofs of service on those defendants must be filed with the court within 60 days after the filing of the complaint." CRC 3.110(b). The Complaint in this matter was filed on May 8, 2024, and no Proof of Service of Summons has been filed. Plaintiff has not filed a written response to the Order to Show Cause.

The Court finds that Plaintiff has violated CRC 3.110(b). With no sufficient excuse for the delay, sanctions are imposed in the amount of \$250.00 against Plaintiff. The clerk is instructed to prepare a separate Order of Sanctions. The Court will issue an Order to Show Cause Re: Dismissal for failure to timely serve and failure to timely prosecute. Hearing on the Order to Show Cause Re: Dismissal will be **Monday, April 21, 2025 at 8:30 a.m. in Department 63**. The clerk is directed to issue the Order to Show Cause Re: Dismissal. The matter will be on calendar on **Monday, April 21, 2025 at 9:00 a.m. in Department 63** for review regarding status of service. The Court expects the matter to be served prior to the next hearing and proof of service filed with the court.

#### **GUILES VS. FOX, MD, ET AL.**

**Case Number: 23CV-0202397**

**Tentative Ruling on Motion for Summary Judgment:** Defendants Robert C. Fox, M.D. and Robert C. Fox, M.D., Inc. move for summary judgment in this medical malpractice action. Plaintiff Meryl L. Guiles filed an Opposition.

Summary judgment may be granted where it is shown that the action has no merit or that there is no defense to the action. CCP § 437c(a). The Court must determine from the evidence presented that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law. CCP § 437c(c). In moving for summary judgment, a defendant has met his burden of showing that a cause of action has no merit if he has shown that one or more elements of the cause of action cannot be established, or that there is a complete defense to that cause of action. Once the defendant has met that burden, the burden shifts to the plaintiff to show that a triable issue of one or more material facts exists as to that cause of action or a defense thereto. The plaintiff may not rely upon the mere allegations or denials of his pleadings to show that a triable issue of material fact exists but, instead, must set forth the specific facts showing that a triable issue of material fact exists as to that cause of action or a defense thereto. CCP § 437c(o). The scope of the defendant's initial burden is defined by the pleadings. See *580 Folsom Assocs. v. Prometheus Dev. Co.* (1990) 223 Cal. App. 3d 1, 18.

In any medical malpractice action, the plaintiff must establish: (1) the duty of the professional to use such skill, prudence, and diligence as other members of his profession commonly possess and exercise; (2) a breach of that duty; (3) a proximate causal connection between the negligent conduct and the resulting injury; and (4) actual loss or damage resulting from the professional's negligence. *Powell v. Kleinman* (2007) 151 Cal. App. 4th 112, 122. The standard of care against which the acts of a medical practitioner are to be measured is a matter peculiarly within the knowledge of experts; it presents the basic issue in a malpractice action and can be proved only by expert testimony, unless the conduct required by the particular circumstances is within the common knowledge of laymen. *Massey v. Mercy Medical Center Redding* (2009) 180 Cal. App. 4th 690.

That being said, the Court is not to simply rubber stamp expert declarations. Expert witnesses normally testify concerning the bases for their opinions, and the Court may require the expert to state the bases before giving his opinion. *Kelley v. Trunk* (1998) 66 Cal. App. 4th 519, 523. An expert's opinion, even if uncontradicted, may be rejected if the reasons given for it are unsound. *Ibid.* Even where an opinion is supported, the Court sitting in the summary judgment context must pay close attention to any opposing opinion given by a well-credentialed expert in order to determine whether there is a triable issue of material fact. *Ibid.* It is not the Court's role in summary judgment to decide which expert's opinion is correct, but to determine whether or not the opinions being offered are substantiated by reason. See *Ibid.*

Here, the element of duty is not in dispute. Dr. Fox contests the sufficiency of the evidence to show a breach of the duty to use such skill, prudence, and diligence as other members of his profession commonly possess and exercise. In support of his motion, Dr. Fox proffered a series of undisputed material facts. While Plaintiff filed an Opposition, no Separate Statement was submitted by Plaintiff.

In support of his motion, Dr. Fox has presented the Declaration of Neil Friedman, M.D. Dr. Friedman provided his C.V. which provides sufficient evidence of his expertise in this area of medicine. The Court notes that Plaintiff did not challenge the qualifications of Dr. Friedman.

Dr. Friedman performed a review of the medical records as well as a review of the allegations in Plaintiff's Complaint. *Dec. Friedman*, ¶ 5. Dr. Friedman accurately recited the evidence presented in the medical records from both Dr. Fox and follow-up providers. *Id.*, ¶ 6. Dr. Friedman opined that Dr. Fox complied with the standard of care in all respects in his care and treatment of Plaintiff. *Id.*, ¶ 8. Dr. Friedman provided the bases of his opinion. *Id.*, ¶ 9.

The expert declaration appropriately describes the applicable standard of care, as required by *Doe v. Good Samaritan Hosp.* (2018) 23 Cal. App. 5th 653, 664-665. The expert has ample experience and has reviewed the pertinent records to provide his opinions. The Court finds that Dr. Friedman has provided competent medical testimony sufficient to negate Plaintiff's allegations that Dr. Fox failed to meet the standard of care.

The burden thus shifts to Plaintiff to present evidence of a disputed material issue of fact. See *Browne v. Turner Construction Co.* (2005) 127 Cal. App. 4th 1334, 1339–1340. Generally, in the realm of medical malpractice cases, this is accomplished by plaintiffs submitting their own expert’s opinions regarding the standard of care, thus paving the road for the classic “battle of the experts.” Plaintiff has presented no expert testimony to negate the opinion of Dr. Friedman. The only evidence provided by Plaintiff is her own declaration to which Plaintiff attached medical records and text messages. This evidence does not raise a triable issue of material fact. The Court notes that Plaintiff alleges that fraud was committed with respect to her medical records, however, fraud is not alleged in the Complaint.

“ ‘The purpose of a summary judgment proceeding is to permit a party to show that material factual claims arising from the pleadings need not be tried because they are not in dispute.’ [Citation.] ‘The function of the pleadings in a motion for summary judgment is to delimit the scope of the issues: the function of the affidavits or declarations is to disclose whether there is any triable issue of fact within the issues delimited by the pleadings.’ [Citations.] The complaint measures the materiality of the facts tendered in a defendant’s challenge to the plaintiff’s cause of action. [Citation.]” (*FPI Development, Inc. v. Nakashima* (1991) 231 Cal.App.3d 367, 381, 282 Cal.Rptr. 508.) A “plaintiff cannot bring up new, unpleaded issues in his or her opposing papers. [Citation.]” (*Government Employees Ins. Co. v. Superior Court* (2000) 79 Cal.App.4th 95, 98–99, fn. 4, 93 Cal.Rptr.2d 820.) A plaintiff wishing “to rely upon unpleaded theories to defeat summary judgment” must move to amend the complaint before the hearing. (*Leibert v. Transworld Systems, Inc.* (1995) 32 Cal.App.4th 1693, 1699, 39 Cal.Rptr.2d 65; see also *580 Folsom Associates v. Prometheus Development Co.* (1990) 223 Cal.App.3d 1, 18, 272 Cal.Rptr. 227.)

*Knapp v. Doherty* (2004) 123 Cal. App. 4th 76, 90.

Therefore, any issues of alleged fraud are not properly before the Court. The Court finds that there is no triable issue of material fact as to the breach of the duty to use such skill, prudence, and diligence as other members of the profession commonly possess and exercise.

The Motion for Summary Judgment is **GRANTED**. Defendants provided a proposed Order that will be executed by the Court. Today’s Mandatory Settlement Conference and the trial date of April 15, 2025 are vacated. The matter will be on calendar on **Monday, April 28, 2025 at 9:00 a.m. in Department 63** for status of judgment. Defendants are to submit a proposed judgment consistent with the Court’s ruling. The future hearing date will vacated if judgment is entered prior to the hearing.

#### **JAJUGA, ET AL. VS. FCA US LLC**

**Case Number: 24CV-0205061**

**Tentative Ruling on Motions to Compel Further Responses:** Plaintiffs Ashley Jajuga and Cindy Jajuga move to compel Defendant FCA US, LLC to provide further responses to Special Interrogatories and Requests for Production of Documents. Replies are required to be filed at least five court days before the hearing. Plaintiffs filed their replies on March 5, 2025, only two court days prior to the hearing. Based on the late filings and to ensure that both the Court and the Defendant have sufficient time to review the late filed replies, both motions are continued one week to **Monday, March 17, 2025, at 8:30 a.m. in Department 63**. **No appearance is necessary on today’s calendar.**

#### **KING, ET AL. VS. TYNER, ET AL.**

**Case Number: 23CV-0202922**

**Tentative Ruling on Order to Show Cause Re: Sanctions:** An Order to Show Cause Re: Sanctions issued January 27, 2025 to Plaintiffs, Christine King and Paul King, and Plaintiff’s Counsel for failure to appear at the January 21, 2025 hearing and failure to provide the Court with a status update. Plaintiffs submitted a Request for Dismissal, subsequently filed by the clerks and entered on January 17, 2025, dismissing the entire action of all